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| 7.                 | 26PR0190 | IN THE MATTER OF HIBBERT JEFF |
| PETITION TO COMPEL |          |                               |

**ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 24, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 10, 2026.**

Petitioner, Jeff Hibbert ("Petitioner"), seeks orders compelling Respondent, Roger Bushey ("Respondent" or "Trustee"), to provide notice and information concerning the Lavonne Hibbert Family Trust dated roughly December 2009. There is no opposition on file.

Petitioner is under the information and belief that Decedent and Decedent's husband, Tommy Hibbert, established one or more trust instruments during their shared lifetimes, including the Lavonne Hibbert Family Trust in which Respondent was named as Trustee. Despite requests, Respondent has failed to complete notice to all beneficiaries and heirs entitled to receive notice, nor has Respondent identified and notified all persons entitled to notice under applicable law. Petitioner has requested information concerning the identities of the beneficiaries and heirs, whether statutory notice has been provided, and whether proof of service exists; however, Respondent has failed to provide such information.

Petitioner seeks the following requests:

1. Orders compelling Respondent to identify and produce : a) all trust instruments executed by Decedent and Decedent's former husband, Tommy Hibbert, including original trusts, amendments, and restatements; b) all documents identifying trustees, successor trustees, beneficiaries, and contingent beneficiaries; and c) all information necessary to identify persons entitled to notice concerning any such trust(s);
2. Order compelling Respondent to provide all notices required by law, including notice required under Probate Code § 16061.7 where applicable;
3. Order requiring Trustee to file proof of service or other evidence demonstrating compliance with such notice obligations; and
4. Attorney's fees and costs as permitted by law.

**TENTATIVE RULING #7:**

**ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).**

**IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.**